
Fred Nicholson School Visit Report**Audit Date: 12/12/19****Report: Year 2 visit 1****DPE: Stuart Lee****School member: Mike Roach (DH) and Sue Martin (SBM)**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed/demonstrated with the school. The school have previously had a remote session with Kalina (DPE).

Actions from the previous visit have either been completed or are in the process of being completed. The school were registered with the ICO. The school were advised to replace Mike as the named DPO on GDPR policies/procedures and replace with: Data Protection Education and to add the GDPR policy to the school website. The school reports to and has a governor assigned for GDPR. The work away from school and clear desk policy were discussed with the school.

2. Audit walk findings

There was only time to complete a mini school walk. The school continue to raise staff awareness and practice in school which was evident when talking to staff and when completing the mini walk.

Main observation from walk:

Atrium:

- Email folder on desk – closed but not put away. **Action point:** reminder to staff to store securely.

Pigeonholes:

- These are in an open area. **Note:** Discussed with the school not to add sensitive data and to hand deliver.

CCTV

- SL to complete a CCTV DPIA at the next visit including, positioning of cameras. Suggested base unit is secured and screen is altered to single view of gate, to minimise who has access. DPE admin to contact Mike to arrange. Additional guidance can be obtained from: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/cctv>

Whole school action point: School to review actions from previous report and the school can disseminate the best practice guidance to staff which will further support practice in school: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice Privacy statement** - SL to send updated lawful basis text. Suggested staff privacy notice is disseminated to staff and added to the GDPR folder.
- GDPR Policy – to add to the school website**
- Data Breach Procedure. School to disseminate**
- SAR procedure – redistribute to office staff**
- Photo and Video consent, guidelines and records**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

Note: the school subscribes to an online provider and have access to GDPR training (FLICK learning). It was suggested Sue and Mile also complete the DPE GDPR e-learning training.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

Note: School is developing routines and have a Teaching Assistant to collect devices and regularly delete images/videos etc.

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>

8. DPE to follow up:

School would like a model email disclaimer. SL to follow up with JE (actioned).